

Division 2 – Powers, duties and obligations**9. Requirement for approval to conduct works on roads**

- (1) The **Road Management Act 2004** requires any person proposing to conduct works in, on, under or over a road to obtain the written consent of the coordinating road authority, unless an exception applies in accordance with section 63(2) of that Act, or an exemption applies in accordance with the Road Management (Works and Infrastructure) Regulations 2015. Failure to comply with this requirement is an offence under section 63(1) of that Act.
- (2) Clause 16 of Part 2 of Schedule 7 to the **Road Management Act 2004** provides that a person may apply to a coordinating road authority for written consent to the conduct of proposed works on a road. Part 2 of Schedule 7 to the **Road Management Act 2004** also includes the powers and responsibilities of the coordinating road authority in considering any such works proposal.

10. Duties and obligations for conducting works on roads

- (1) An infrastructure manager and a works manager, which includes a person responsible for a non-road activity to which section 99B of the **Road Safety Act 1986** applies, have specific duties which apply variously in relation to roads and non-road infrastructure in accordance with Part 1 of Schedule 7 to the **Road Management Act 2004**. Whilst listed below in summary, these duties should be considered carefully to determine the circumstances in which they apply:
 - the duty to apply principles;
 - the duty to act in accordance with good engineering practice and relevant industry standard;
 - the duty to have a traffic management plan;
 - the duty to cooperate;
 - the duty to avoid unnecessary delay or obstruction or interference with infrastructure;
 - the duty to maintain non-road infrastructure or related works to a satisfactory standard;
 - the duty to give notice to the relevant coordinating road authority;
 - the duty to give notice to other infrastructure manager or works manager;
 - the duty to provide information;
 - the duty to consult members of the public;
 - the duty to take other reasonable measures to minimise disruption and ensure safety;
 - the duty to reinstate;
 - the duty to provide a notice of completion of works.

Note: The application of the duties to a person responsible for a non-road activity to which section 99B of the **Road Safety Act 1986** applies is in accordance with section 48 of the **Road Management Act 2004**.

- (2) The duty to have a traffic management plan is imposed by Clause 3 of Schedule 7 to the **Road Management Act 2004**. An infrastructure manager or works manager must comply with:
 - any requirements in relation to the safety of road users; and
 - section 99A of the **Road Safety Act 1986**.
- (3) In addition, infrastructure managers and works managers are required to apply specified principles in relation to the provision of non-road infrastructure in accordance with Clause 14 of Schedule 7 to the **Road Management Act 2004**. The primary purpose of a road is use by members of the public and authorised uses must be managed as far